

party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust." In the present case, Defendant is the prevailing party, and Plaintiff had no justification in opposing the motion.

3.

CASE #	CASE NAME	HEARING NAME
CVME2512887	HOWELL VS VCA ANIMAL HOSPITALS INC	DEMURRER/MOTION TO STRIKE

Tentative Ruling: Demurrer and Motion to Strike continued to October 29, 2026 8:30 am M301. The hearing on the Demurrer and Motion to Strike should be continued to allow Defendants an opportunity to satisfy their statutory obligation to meet and confer in accordance with CCP §§ 431.41 and 435.5 to file an appropriate declarations. The Declaration of Kimberly B. Pinkerton ("Pinkerton Decl.") states that on several occasions prior to filing the instant Demurrer [and Motion to Strike] to Plaintiffs' First Amended Complaint, she reached out via telephone to Plaintiff Nancy Howell in an attempt to Meet and Confer in connection with various deficiencies identified relating to Plaintiffs' First Amended Complaint. She left voicemails identifying herself and specifying the intent of her telephone calls, which was to Meet and Confer regarding the deficiencies relating to Plaintiffs' First Amended Complaint. (Pinkerton Decl., ¶12.) She was unable to reach Plaintiff Nancy Howell via telephone and was, therefore, unable to Meet and Confer regarding the deficiencies identified in the First Amended Complaint. (Pinkerton Decl., ¶13.) Accordingly, the hearing on the Demurrer and Motion to Strike is continued to 10-29-26. Plaintiff is ordered to meet and confer with Defendants by telephone, video conference or in person for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the Demurrer and Motion to Strike. As part of the meet and confer process, Defendants shall identify with legal support the basis of the alleged deficiencies in the First Amended Complaint. Plaintiff shall provide legal support for his position that the pleading is legally sufficient or, in the alternative, how the First Amended Complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendants shall 10 days before the continued hearing date set forth above do one of the following:

vacate the hearing on the Demurrer and Motion to Strike;
file with the court a declaration stating that the parties have agreed that Plaintiff will file a Second Amended Complaint before the date set forth above; or
file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the Demurrer and Motion to Strike that the parties were unable to resolve.

The court will not accept further briefing.